Government e-Marketplace (GeM)

Hiring of Manpower Services (Unskilled, Skilled, Clerical/Supervisory)

Bid Number: GEM/2021/B/1128240 | **Issuing Authority:** Office of the Comptroller & Auditor General (CAG) of India

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Issuing Organization: Office of the Comptroller and Auditor General (CAG) of India, New Delhi

Portal: GeM (Government e-Marketplace) bid document, mirrored on the CAG's own official tenders page (cag.gov.in)

Bid Document No.: 46/GS/114-2021, dated 22.03.2021 | GeM Bid Number: GEM/2021/B/1128240

Title: Hiring of Manpower Services (Un-skilled, Skilled and Clerical/Non-Technical Supervisory staff)

Pages: 48

original binary PDF with original pagination/formatting)

Bid Details

Bid End Date/Time 01-05-2021 21: 00:00

Bid Opening Date/Time 01-05-2021 21: 30:00

Bid Life Cycle (From Publish Date) 90 (Days)

Bid Offer Validity (From End Date) 30 (Days)

Ministry/State Name Comptroller And Auditor General (cag) Of India

Office Name Office Of Cag Of India, New Delhi

Item Category Manpower Outsourcing Services - Minimum wage - Unskilled; Admin; Multi-tasking Staff , Manpower Outsourcing Services - Minimum wage - Skilled; Admin; Data Entry Operator , Manpower Outsourcing Services - Minimum wage - Skilled; Others; Driver - LMV

Contract Period 1 Year(s)

Minimum Average Annual Turnover of the Bidder: 357 Lakh(s)

Years of Past Experience required: 3 Year(s)

Past Experience of Similar Services required: Yes

MSE Exemption for Years of Experience and Turnover: No

Startup Exemption for Years of Experience and Turnover: No

Document required from seller: Experience Criteria, Bidder Turnover, Certificate (Requested in ATC), Additional Doc 1-4 (Requested in ATC)

*In case any bidder is seeking exemption from Experience / Turnover Criteria, the supporting documents to prove his eligibility for exemption must be uploaded for evaluation by the buyer

Estimated Bid Value: 71,472,780

Evaluation Method: Total value wise evaluation

EMD Detail

Advisory Bank: State Bank of India

EMD Percentage(%): 5.00

EMD Amount: 3,573,639

ePBG Percentage(%): 10.00, Duration of ePBG required: 14 months

(a). EMD EXEMPTION: The bidder seeking EMD exemption, must submit the valid supporting document for the relevant category as per GeM GTC with the bid. Under MSE category, only manufacturers for goods and Service Providers for Services are eligible for exemption from EMD. Traders are excluded from the purview of this Policy.

(b). EMD & Performance security should be in favour of Beneficiary: PAO, OFFICE OF THE COMPTROLLER AND AUDITOR

GENERAL OF INDIA, NEW DELHI 110124

1. The minimum average annual financial turnover of the bidder during the last three years, ending on 31st March of the

previous financial year, should be as indicated above in the bid document. Documentary evidence in the form of certified Audited Balance Sheets of relevant periods or a certificate from the Chartered Accountant / Cost Accountant indicating the turnover details for the relevant period shall be uploaded with the bid. In case the date of constitution / incorporation of the bidder is less than 3-year-old, the average turnover in respect of the completed financial years after the date of constitution shall be taken into account for this criteria.

2. Years of Past Experience required: The bidder must have experience for number of years as indicated above in bid data

sheet (ending month of March prior to the bid opening) of providing similar type of services to any Central / State Govt Organization / PSU / Public Listed Company. Copies of relevant contracts / orders to be uploaded along with bid in support of having provided services during each of the Financial year.

3. Estimated Bid Value indicated above is being declared solely for the purpose of guidance on EMD amount and for

determining the Eligibility Criteria related to Turn Over, Past Performance and Project / Past Experience etc.

4. Past Experience of Similar Services: The Bidder must have successfully executed / completed at least one single order of

80% of the Estimated Bid Value or 2 orders each of 50% of the Estimated Bid Value or 3 orders each of 40% of the Estimated Bid Value for similar service(s) in last three years to any Central / State Govt Organization / PSU / Public Listed Company. Copies of contracts / work orders and documentary evidence of successful execution / completion in support of Past Experience of Similar Services along with names, address and contact details of clients shall be uploaded with the bid for verification by the Buyer.

Additional Terms and Conditions (buyer-added):

1. Bidders are advised to check applicable GST on their own before quoting.

2. Dedicated /toll Free Telephone No. for Service Support required.

3. Duration of the service contract may be extended up to 6 months beyond the initial contract duration.

4. Escalation Matrix For Service Support required.

5. ISO 9001: The bidder or the OEM of the offered products must have ISO 9001 certification.

6. Supplier shall ensure that the Invoice is raised in the name of Consignee with GSTIN of Consignee only.

7. While generating invoice in GeM portal, the seller must upload scanned copy of GST invoice and the screenshot of GST

portal confirming payment of GST.

OFFICE OF THE COMPTROLLER AND AUDITOR GENERAL OF INDIA, NEW DELHI

Bid Document No. 46/GS/114-2021 Dated 22.03.2021

BID DOCUMENT (Scope of Work and Special Conditions of Contract)

FOR SELECTION OF AGENCY FOR PROVIDING HIRED MANPOWER (Un-skilled, Skilled and Clerical and Non-Technical Supervisory staff) to work as Peon / Clerical work

Table of Contents:

Annexure 1 - Bid Submission Form
Annexure 2 - Instructions to the Bidders
Annexure 3 - General Conditions of Contract (GCC)
Annexure 4 - Special Conditions of Contract (SCC)
Annexure 5 - Schedule of Works / Services
Annexure 6 - Technical Bid Form
Annexure 7 - Notarized Affidavit form for Acceptance of Terms and Conditions of Bid
Annexure 8 - Notarized Affidavit form for relatives and non-conviction under IPC
Annexure 9 - Notarized Affidavit form for having experience
Annexure 10 - Notarized Affidavit form for providing required service
Annexure 11 - Form of Articles of Agreement
Annexure 12 - Form of Performance Bank Guarantee
Annexure 13 - Bid Security Form

ANNEXURE-1: BID SUBMISSION FORM (LETTER OF BID)

We, the undersigned, declare that: (1) We have examined and have no reservations to the Bidding Documents; (2) We undertake to provide the MANPOWER services in conformity with the Bidding Document; (3) Our bid shall be valid for 90 days from the bid submission deadline; (4) If accepted, we commit to submit performance security; (5) We declare that Government of India or any other Government body has not declared us ineligible or blacklisted us; (6) We undertake to enter into agreement as per the bidding document; (7) We accept all terms and conditions of the bidding document.

ANNEXURE-2: INSTRUCTIONS TO THE BIDDERS

1. GENERAL INSTRUCTIONS

1.1 Office of the Comptroller and Auditor General of India (the "Client") invites e-bids under Two Bid System (Technical and Financial) through GeM from reputed firms dealing with Ministries/Govt. departments for providing hired manpower services.

1.3 The Bidder should download the Bid document through GeM Portal and upload it again with signature and stamp, acknowledging acceptance of the entire Bid document.

1.5 Conditional offers, offers with deviations, bids not meeting minimum eligibility criteria, or Technical Bids not accompanied with EMD of requisite amount/format are liable to be rejected.

2. MINIMUM ELIGIBILITY CRITERIA

a. Legal Valid Entity: The Bidder shall necessarily be a legally valid entity, either a Limited Company / Private Limited Company registered under the Companies Act, 2013, or an LLP under the LLP Act, 2008. Bidder in the form of JV/Consortium, Proprietorship, and Partnership is NOT permitted. A proof for supporting the legal validity of the Bidder shall be submitted.

b. Registration: The Bidder should be registered with the Income Tax, Goods and Service Tax and also registered under the labour laws, Employees Provident Fund Organisation (EPFO), Employees State Insurance Corporation (ESIC).

c. Clearance: The Bidder should also have clearance from GST, and Income Tax Department. Relevant proof in support shall be submitted.

d. Experience: The Bidder should have (i) at least three years' experience for providing manpower services in Ministries / Departments under Government of India and (ii) experience in providing manpower services in any of the sensitive / VVIP areas like PMO, IB, Ministries /Departments of GOI, President's Secretariat, Parliament, State Assemblies, Supreme Court of India and High Court.

e. Turnover: The Bidder should have minimum gross turnover in the similar business of providing manpower as per the bid document.

f. The bidder should have its own trained manpower on their rolls. A Notarized affidavit and undertaking that the workers employed would be paid at least minimum wages (both for skilled and unskilled) as per orders of Govt. of NCT of Delhi and oblige all statutory requirements with respect to ESI, EPF etc.

g. The bidder should have its office located in Delhi / NCT of Delhi region. The Bidder should submit documentary proof for the same.

2.1 Documents supporting the Minimum Eligibility Criteria

(i) 2(a): attested copy of Incorporation Certificate issued by the Companies Registrar/concerned authority.

(ii) 2(b): attested copy of PAN, GST Registration, EPF Registration, ESIC Registration and Labour Licence.

(iii) 2(c): attested copy of ITR and GST/Service Tax Return for the last three financial years.

(iv) 2(d): attested copy of work orders alongwith work completion certificates / ongoing work certificates + notarized affidavit per Annexure-9.

(v) 2(e): attested copy of the audited balance sheets (audited by Chartered Accountant) for the completed three financial years i.e. 2017-18, 2018-19 and 2019-20.

(vi) Other documents as per Clause 6 of Annexure-2.

3. EARNEST MONEY DEPOSIT (EMD)

3.1 EMD in the form of Bank Guarantee/Demand Draft of State Bank of India as per GeM bid document. Validity of the Bank Guarantee/Demand Draft must be up to 3 (three) months from the date of bid submission, in favour of PAO, Office of the CAG of India, payable at New Delhi.

3.6 The bids without Earnest Money shall be summarily rejected.

3.8 The bid security (EMD) may be forfeited on withdrawal during bid validity, or on failing to sign contract/furnish performance security/honour quoted prices — bidder is also liable to be debarred from future tendering.

4. VALIDITY OF BIDS: 90 days from last date of submission, extendable by 30 days.

5-13. Procedures for e-bid submission via GeM Portal (Two Bid System — Technical & Financial), Technical Bid documents required (Annexure-1, 6, 7, 8, 9, 10 + EMD + eligibility-criteria documents), Financial Bid rules (all-inclusive rates: Minimum Wages, EPF, ESIC, Uniform, Gratuity, Bonus, statutory charges), Technical Bid Evaluation criteria, Right of Acceptance, Notification of Award (Letter of Acceptance), Return of EMD timelines.

ANNEXURE-3: GENERAL CONDITIONS OF CONTRACT (GCC)

Definitions; Confidentiality; Performance Bank Guarantee (10% of accepted contract value, State Bank of India, in favour of PAO CAG); Notice to Proceed; Signing of Contract Agreement; Services Required; Commencement of Services; Contractor's Obligations (uniformed/trained personnel, monthly EPF/ESI details submission, ID cards, no child labour <18 years, organisation chart, code of conduct); Contractor's Liability (indemnification); Client's Obligations; Validity of Contract (1 year, extendable on satisfactory performance, right to terminate + blacklist on breach); Payments (GST exclusive, invoice by 5th of month, NEFT payment, TDS deduction); Force Majeure; Termination; Disclaimer (near-relative conflict-of-interest bar); Insolvency; Currencies of Bid and Payments (INR only); Governing Laws and Settlement of Dispute (Arbitration and Conciliation Act 1996, venue New Delhi, jurisdiction Delhi courts); Corrupt or Fraudulent Practices (blacklisting provisions).

ANNEXURE-5: SCHEDULE OF WORKS/SERVICES

Deployment table:

- Unskilled (Peon/MTS): 177 positions, min. X standard passed
- Clerical/Non-Technical Graduate (Clerks/DEOs/Stenos/Receptionist): 86 positions, graduate, MS Office proficiency, 15,000 key depressions/hour
- Clerical/Non-Technical Non-Graduate (min 12th passed): 10 positions
- Skilled (Staff Car Drivers): 5 positions

Penalties: Rs.5,000/day for late salary disbursement (up to 15th of month, else contract terminated + blacklisted); Rs.5,000/day/complaint for unsatisfactory performance; Rs.500/absentee/day for staffing shortfall; double-rate deduction for failure to fulfil minimum statutory (ESIC/EPF) requirements — treated as breach, contractor liable to be blacklisted.
Code of Conduct, Confidentiality, Telephone Handling, Patrolling Procedures, Frisking/Checking Procedures for deployed staff.

ANNEXURE-6: TECHNICAL BID FORM (fields include): Firm name, authorised signatory, registration & incorporation particulars (Private/Public Ltd/Other), Director details, bidder's bank & account no., PAN, GST No., EPF Registration No., ESIC Registration No., EMD particulars (DD/BG no., date, bank), description of similar work executed in last 3 financial years (govt departments, value, dates, evidence), checklist of uploaded documents: EMD, PAN copy, GST copy, last-3-years Balance Sheet copies, last-3-years ITR copies, Experience Certificates and Work Orders, Annexures 1/6/7/8/9/10.

ANNEXURE-7,8,9,10: Notarized Affidavits (on non-judicial stamp paper of Rs.10/-) covering: acceptance of bid terms; non-conviction under Prevention of Corruption Act 1988 / IPC; no relatives employed at CAG; 3 years' manpower-services experience including VVIP-area experience; at least one similar contract of not less than Rs.___ crore in last 3 years; own trained manpower on rolls; minimum-wage/ESI/EPF compliance undertaking.

ANNEXURE-11: FORM OF CONTRACT AGREEMENT (Articles of Agreement) between Director(P), CAG office and the Contractor firm, incorporating LoA, NTP, complete Bid, Addenda, and Performance Bank Guarantee as forming part of the Agreement; governed by laws of India; Delhi jurisdiction.

ANNEXURE-12: FORM OF PERFORMANCE BANK GUARANTEE — unconditional, on-demand bank guarantee for 10% of Contract Sum from a scheduled bank with a branch in New Delhi, valid through Contract Period + extensions, Demand must be filed within 6 months of expiry, governed by Indian law / Delhi courts jurisdiction.

ANNEXURE-13: BID SECURITY FORM (EMD bank guarantee format) — conditions of forfeiture: withdrawal during bid validity; failure to execute contract/furnish performance security/perform duties after notification of acceptance; guarantee valid for bid-validity period + 30 days, up to 120 days.